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* **IN THE HIGH COURT OF DELHI AT NEW DELHI**

\+ BAIL APPLN. 2155/2025

RAVI KUMAR GAHLOT .....Petitioner

Through: Mr. Jogender Kumar, Advocate.

versus

STATE (NCT OF DELHI) .....Respondent

Through: Mr. Hitesh Vali, APP with SI Vikas Kumar, PS-DIU, Dwarka.
Mr. Mayank Sharma and Ms. Gaganpreet Kaur, Advocates for complainant Dr. Ram Chand,.

CORAM:
HON'BLE MR. JUSTICE RAVINDER DUDEJA

O R D E R

% **07.08.2025**

1. This is an application under Section 483 BNSS, 2023 for grant of bail to the applicant-Ravi Kumar Gahlot in case FIR No. 475/2021 under Sections 420/468/471/120B/467/419 IPC, registered at Police Station Dwarka, Sector 23.

2. Learned counsel appearing for the applicant submits that the alleged loan was obtained by Smt. Kanchan, who has since been arrested and is in judicial custody and investigation *qua* her has culminated in the form of charge sheet, filed before the Court. Applicant has no role to play in the taking of loan on the basis of alleged forged documents.

3. It has been further submitted that some amount has been transferred in the account of applicant and his family members by co-accused Smt. Kanchan, but the same is with regard to financial transactions between applicant and Smt. Kanchan. The said amount has nothing to do with the

alleged commission of offence.

4. It is submitted that investigation *qua* the present applicant is complete, charge sheet has already been filed in Court and applicant is not required for custodial investigation. He is in judicial custody since 22.08.2023.

5. It has been further submitted that co-accused Somnath Patial, Manager of Punjab and National Bank ["**the Bank**"], who has sanctioned the loan, has since been enlarged on bail. Applicant was granted interim bail, but did not misuse the liberty of grant of bail and, thus, there is no risk of his absconding.

6. It is further submitted that the present case is based on documentary evidence, which is already in possession of the prosecution and has been placed on record, and therefore, there is no chance of applicant tempering with any evidence.

7. Bail application has been opposed by the learned APP appearing for the State, arguing that the present applicant along with co-accused Smt. Kanchan in collusion with the Bank officials got sanctioned the loan of Rs. 1,95,00,000/- from the Bank on the basis of forged documents of property belonging to the complainant. It is submitted that applicant is the main conspirator in obtaining loan based on forged documents. It is also stated that applicant did not cooperate in the interrogation. No recovery of the alleged loan amount could be affected from him.

8. Learned APP further states that during interrogation, co-accused Smt. Kanchan confessed that she was hired by the applicant for appearing before the Bank officials for the grant of loan, as borrower. The applicant is also involved in another case of cheating in case FIR No. 254/2022 under

Sections 420/468/471/120B IPC, registered at Police Station Kalkaji. Therefore, it is argued that applicant does not deserve the leniency of grant of bail.

9. As per allegations, the applicant along with co-accused, Smt. Kanchan in collusion with bank officials, managed to carry out the financial fraud by using forged title documents of the property belonging to complainant to obtain loan of Rs. 2,00,00,000/- from the Bank.

10. The status report reveals that photographs affixed on the loan application was not of complainant. The signatures of the complainant on the loan documents were forged. The loan application contained the date of birth as 28.04.1975, while the actual date of birth of complainant is 15.10.1961.

11. The loan application was submitted by the co-accused, Smt. Kanchan, proprietor of Shakti Enterprises. The loan amounting to Rs. 1,95,00,000/- was disbursed in the account of Smt. Kanchan. Out of the total sanctioned loan amount, which was credited to the account of Smt. Kanchan, an amount of Rs. 38,35,000/- was transferred in the personal account of present applicant. Rs. 74,00,000/- was transferred into the bank account of firm, namely, Shiva Homes, of which applicant is the proprietor. Rs. 8,80,000/- was transferred to the bank account of wife of applicant and Rs. 15,00,000/- each was transferred to the bank accounts of father and mother of the applicant. Thus, applicant is the main beneficiary of the loan transaction.

12. During investigation, the property documents received from the bank were found fake and scanned with accuracy. The stamp papers were found scanned on papers having watermark to negate any suspicion.

13. The status report further reveals that when the verification of alleged

mortgaged property was done on the directions of the Bank, applicant introduced himself as the neighbour of the loan applicant and verified the borrower/guarantor as genuine persons.

14. The Bank filled and signed cheques and cheque book related to the co-accused Smt. Kanchan, has been recovered from the residence of the applicant. Thus, he is the main conspirator and beneficiary of the loan obtained fraudulently on the basis of forged documents of the property belonging to the complainant.

15. The e-mail address and mobile number mentioned in the certified copy of the ITR of co-accused, Smt. Kanchan pertain to the present accused, which *prima facie* proves that both of them are associated with each other and conspired for commission of offence of cheating.

16. Even though the applicant was initially arrested on 22.08.2023, but was granted interim bail in October, 2024 on medical grounds and remained on interim bail till 01.04.2025. Thus, effective custody of the applicant is about one and a half year only.

17. Admittedly, no recovery of the loan amount fraudulently obtained has been affected from the applicant. The allegations against the applicant are grave and serious in nature.

18. Hence, the Court is not inclined to grant bail to the applicant at this stage. The application, is therefore, dismissed.

19. A copy of this order be sent to the applicant through Jail Superintendent.

RAVINDER DUDEJA, J

AUGUST 7, 2025/*vd*